

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 815

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-1006, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE TRANSPORTATION SUPPORT PROGRAM; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-1006, Idaho Code, be, and the same is hereby amended to read as follows:

33-1006. TRANSPORTATION SUPPORT PROGRAM. (1) The state board of education shall determine what costs of transporting pupils, including maintenance, operation and depreciation of basic vehicles, insurance, payments under contract with other public transportation providers whose vehicles used to transport pupils comply with federal transit administration regulations, "bus testing," 49 CFR part 665, and any revision thereto, as provided in subsection (4) (d) of this section, or other state department of education-approved private transportation providers, salaries of drivers, and any other costs, shall be allowable in computing the transportation support program of authorized transportation operations.

(2) Any costs associated with the addition of vehicle features that are not part of the basic vehicle shall not be allowable in computing the transportation support program of an authorized transportation operation. A basic vehicle is hereby defined as the cost of the vehicle without optional features, plus the addition of essential safety features and features necessary for the transportation of pupils with disabilities.

(3) Each authorized transportation operation shall maintain records and make reports as are required for the purposes of this section.

(4) The transportation support program of an authorized transportation operation shall be based upon the allowable costs of:

(a) Transporting public school pupils one and one-half (1 1/2) miles or more to school;

(b) Transporting pupils less than one and one-half (1 1/2) miles as provided in section 33-1501, Idaho Code, when approved by the state board of education;

(c) Payments when transportation is not furnished, as provided in section 33-1503, Idaho Code;

(d) The transportation program for kindergarten through grade 12, upon the costs of payments pursuant to a contract with other public or private transportation providers entered into as provided in section 33-1510, Idaho Code, if the authorized transportation operation establishes that the reimbursable costs of transportation under the contract are equal to or less than the costs for school buses;

(e) The employer's share of contributions to the public employee retirement system and to social security; and

1 (f) Providing transportation to and from approved school activities as
2 may be approved by the rules of the state board of education.

3 (5) The state's share of the transportation support program shall be
4 fifty percent (50%) of reimbursable transportation costs incurred by the
5 authorized transportation operation during the immediately preceding state
6 fiscal year, except for the cost of state department of education training
7 and fee assessments and bus depreciation and maintenance, for which the
8 state's share shall be eighty-five percent (85%) of such costs. The state's
9 share for authorized transportation operations that contract for pupil
10 transportation services shall be the average state share of costs for autho-
11 rized transportation operations that are school district-run operations,
12 based on the statewide total of such costs. Provided however, that the reim-
13 bursable costs for any authorized transportation operation shall not exceed
14 one hundred three percent (103%) of the statewide average reimbursable
15 cost per mile or the statewide average reimbursable cost per student rider,
16 whichever is more advantageous to the authorized transportation provider.
17 If an authorized transportation operation's costs exceed the one hundred
18 three percent (103%) limit when computed by the more advantageous of the two
19 (2) methods, that authorized transportation operation shall be reimbursed
20 at the appropriate percentage designated by this subsection, multiplied
21 by the maximum limit for whichever method is more favorable to the autho-
22 rized transportation operation. An authorized transportation operation may
23 appeal the application of the one hundred three percent (103%) limit on reim-
24 bursable costs to the state board of education, which may establish for that
25 authorized transportation operation a new percentile limit for reimbursable
26 costs compared to the statewide average, which is higher than one hundred
27 three percent (103%). In doing so, the state board of education may set a
28 new limit that is greater than one hundred three percent (103%), but is less
29 than the percentile limit requested by the authorized transportation oper-
30 ation. However, the percentage increase in the one hundred three percent
31 (103%) cap shall not exceed the percentage of the authorized transportation
32 operation's bus runs that qualify as a hardship bus run, pursuant to this
33 subsection. Any costs above the new level established by the state board of
34 education shall not be reimbursed. Such a change shall only be granted by the
35 state board of education for hardship bus runs. To qualify as a hardship bus
36 run, such bus run shall meet at least two (2) of the following criteria:

37 (a) The number of student riders per mile is less than fifty percent
38 (50%) of the statewide average number of student riders per mile;

39 (b) Less than a majority of the miles on the bus run are by paved sur-
40 face, concrete or asphalt road;

41 (c) Over ten percent (10%) of the miles driven on the bus run are a five
42 percent (5%) slope or greater.

43 (6) Beginning on July 1, 2005, any eligible home-based public virtual
44 school may claim transportation reimbursement for the prior fiscal year's
45 cost of providing educational services to students. In order to be eligi-
46 ble, such a school shall have at least one (1) average daily attendance divi-
47 sor, pursuant to section 33-1002, Idaho Code, that is greater than the median
48 divisor shown for any category of pupils, among the actual divisors listed.
49 For the purposes of paragraphs (a), (b) and (c) of this subsection, "educa-
50 tion provider" means the home-based public virtual school or an entity that

1 has legally contracted with the home-based public virtual school to supply
2 education services. Reimbursable costs shall be limited to the costs of:

3 (a) Providing an internet connection service between the student and
4 the education provider, not including the cost of telephone service;

5 (b) Providing electronic and computer equipment used by the student
6 to transmit educational material between the student and the education
7 provider;

8 (c) Providing a toll-free telephone service for students to communi-
9 cate with the education provider;

10 (d) Providing education-related, face-to-face visits by representa-
11 tives of the home-based public virtual school, with such reimbursements
12 limited to the mileage costs set for state employee travel by the state
13 board of examiners; and

14 (e) Any actual pupil transportation costs that would be reimbursable
15 if claimed by an authorized transportation operation that is a school
16 district.

17 The total reimbursement for such home-based public virtual schools shall be
18 exempt from the statewide average cost per mile limitations of this section.
19 The state's share of reimbursable costs shall be eighty-five percent (85%),
20 subject to the statewide cost per student rider provisions of this section.
21 For the purposes of such home-based public virtual school, the number of stu-
22 dent riders shall be the same as the number of pupils in average daily atten-
23 dance.

24 (7) The state department of education shall calculate the amount of
25 state funds lost in fiscal year 2010 by each authorized transportation oper-
26 ation as a result of the decrease in the state reimbursement from eighty-five
27 percent (85%) to fifty percent (50%) of certain eligible costs, including
28 the reduction calculated for authorized transportation operations that con-
29 tract for pupil transportation services, and excluding any reductions made
30 due to the limitation on reimbursable expenses, all pursuant to subsection
31 (5) of this section. The amount so calculated shall be distributed to each
32 authorized transportation operation in fiscal year 2010. For each fiscal
33 year thereafter, the amount distributed pursuant to this subsection for each
34 authorized transportation operation shall be determined as follows:

35 (a) Divide the amount distributed to the authorized transportation op-
36 eration pursuant to this subsection in fiscal year 2010 by the autho-
37 rized transportation operation's support units for fiscal year 2010;

38 (b) Multiply the result of the calculation found in paragraph (a) of
39 this subsection by the number of support units in the current fiscal
40 year, excluding any support units attributable to students educated
41 primarily through home-based or virtual means;

42 (c) Determine the percentage change in statewide transportation reim-
43 bursements as provided for in subsection (5) of this section since fis-
44 cal year 2010;

45 (d) Determine the percentage change in statewide student enrollment
46 since fiscal year 2010;

47 (e) Subtract the result of the calculation found in paragraph (d) of
48 this subsection from the result of the calculation found in paragraph
49 (c) of this subsection;

1 (f) Adjust the result of the calculation found in paragraph (b) of this
 2 subsection by the percentage result from paragraph (e) of this subsec-
 3 tion.

4 For authorized transportation operations that are school districts
 5 that divided after fiscal year 2010, the calculation in paragraph (a) of
 6 this subsection shall still be based on the fiscal year 2010 figures for the
 7 formerly consolidated district. For authorized transportation operations
 8 that are public charter schools beginning operations on or after July 1,
 9 2009, all calculations in this subsection that are based on fiscal year 2010
 10 shall instead be based on the public charter school's first fiscal year of
 11 operations. For public charter schools beginning authorized transportation
 12 operations before July 1, 2009, that received a transportation distribution
 13 of less than three thousand dollars (\$3,000) in the 2010 fiscal year, all
 14 calculations in this subsection that are based on fiscal year 2010 shall
 15 instead be based on the public charter school's first fiscal year of full
 16 operations after the 2010 fiscal year. For the purposes of this subsection,
 17 the support units used shall be the number used for calculating salary-based
 18 apportionment. Funds distributed pursuant to this subsection shall be used
 19 to defray the cost of pupil transportation. If the amount distributed is
 20 in excess of an authorized transportation operation's actual pupil trans-
 21 portation costs, less any state reimbursements provided by subsection (5) of
 22 this section, the excess funds may be used at the authorized transportation
 23 operation's discretion.

24 (8) Notwithstanding the provisions of subsection (5) of this section,
 25 the state's share of the transportation support program will be based on
 26 reimbursable transportation costs incurred by an authorized transportation
 27 provider during the state fiscal year prior to the immediately preceding
 28 state fiscal year if, during the immediately preceding state fiscal year:

29 (a) An emergency occurred in the state or in the area where the au-
 30 thorized transportation operation is located. For purposes of this
 31 subsection, an emergency includes but is not limited to school closures
 32 caused by extreme weather conditions, a fire, an epidemic, or pollution
 33 of air or water; and

34 (b) As a direct result of such emergency, the reimbursable transpor-
 35 tation costs of an authorized transportation operation decreased by at
 36 least ten percent (10%) from the prior fiscal year.

37 (9) Notwithstanding any provisions of law to the contrary, for the du-
 38 ration of an emergency described in subsection (8) of this section, the miles
 39 for which transportation costs may be reimbursed will be miles:

40 (a) Directly associated with transporting students for the purpose of
 41 school attendance during regular days and hours; or

42 (b) Related to the delivery of food, delivery of instructional mate-
 43 rials, or other trips supporting the continuation of educational ser-
 44 vices.

45 (10) As used in this section, "authorized transportation operation"
 46 means a school district or public charter school transportation program au-
 47 thorized by the state department of education that may include the use of any
 48 vehicles authorized pursuant to chapter 15, title 33, Idaho Code.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.